

[26 GEO. 5. & Ministry of Health [Ch. ix.]
1 EDW. 8.] Provisional Order Confirmation
(Bury and District Joint Hospital District) Act, 1936.



CHAPTER ix.

An Act to confirm a Provisional Order of the A.D. 1936.
Minister of Health relating to the Bury and
District Joint Hospital District. —

[19th March 1936.]

WHEREAS under the provisions of the Public 38 & 39 Vict.
Health Act 1875 the Minister of Health has c. 55.
made a provisional order which needs confirmation by
Parliament :

Be it therefore enacted by the King's most Excellent
Majesty by and with the advice and consent of the Lords
Spiritual and Temporal and Commons in this present
Parliament assembled and by the authority of the same
as follows :—

1. The order of the Minister of Health which as Order in
amended is set out in the schedule to this Act is hereby schedule
confirmed and shall have full validity and force. confirmed.

2. This Act may be cited as the Ministry of Health Short title.
Provisional Order Confirmation (Bury and District Joint
Hospital District) Act 1936.

A.D. 1936.

SCHEDULE.

*Bury and
District
Order.*

BURY AND DISTRICT JOINT HOSPITAL DISTRICT.

Provisional Order altering certain Confirming Acts.

WHEREAS by virtue of the Bury and District Joint Hospital Orders 1903 and 1915 (in this order called "the hospital orders") which were confirmed by Parliament as amended by the Bury Corporation Act 1932 the Lancashire (Southern Areas) Review Order 1933 the Lancashire (Manchester and District) Review Order 1933 and the Bury and District Joint Hospital Order 1935 the boroughs of Bury and Radcliffe and the urban districts of Ramsbottom Tottington and Whitefield constitute a united district called the Bury and District Joint Hospital District of which the governing body is the Bury and District Joint Hospital Board (in this order called "the joint board") consisting of one ex-officio member and thirteen elective members representing the councils of the said borough and urban districts;

And whereas it is expedient that the urban district of Prestwich should be included in the united district aforesaid and that the hospital orders amended as aforesaid should be altered as in this order provided:

Now therefore the Minister of Health in pursuance of the powers given to him by section 297 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows:—

Date of
operation.

1. This order shall come into operation on the first day of April nineteen hundred and thirty-six:

Provided that sections 7 and 8 of this order shall come into operation on the date of the Act of Parliament confirming this order.

Extension
of united
district.

2. The Bury and District Joint Hospital District shall be extended so as to include the urban district of Prestwich and subject to the provisions of this order references in the hospital orders to the constituent districts shall be deemed to include the urban district of Prestwich and references in those orders to the constituent authorities shall be deemed to include the council of the urban district of Prestwich.

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3. The joint board shall consist of one ex-officio member and sixteen elective members and the ex-officio member shall be the person described in column 3 of the schedule to this order and the number of elective members to be elected by each of the constituent authorities shall be that set opposite the name of the constituent authority in column 4 of that schedule.

Bury and District Order.

Ex-officio and elective members of joint board.

4. The hospital orders shall have effect as if the schedule to this order were substituted for the schedule to the Bury and District Joint Hospital Order 1903.

Substitution of new schedule.

5. The provisions of article XI of the Bury and District Joint Hospital Order 1903 shall apply to the first election by the council of the urban district of Prestwich of the elective members to represent that council on the joint board as if the election related to the filling of vacancies occurring at the commencement of this order.

Election of elective members by new constituent authority.

6.—(1) In paragraph (i) of subdivision (5) (Expenses contributable on basis of population) of article XIX of the Bury and District Joint Hospital Order 1903 as re-enacted by article I of the Bury and District Joint Hospital Order 1915 for the words "structural expenses" there shall be substituted the words "structural and establishment expenses."

Expenses of joint board.

(2) Subdivision (8) (Establishment expenses at Florence Nightingale Hospital) of article XIX of the Bury and District Joint Hospital Order 1903 as re-enacted as aforesaid and as amended by the Bury and District Joint Hospital Order 1935 is hereby repealed.

7. For the purpose of any adjustment of property income debts liabilities and expenses which may become necessary in consequence of the provisions of this order section 151 of the Local Government Act 1933 shall apply subject to any necessary modifications.

Adjustment of property liabilities &c.

8. The Minister of Health may hold any inquiry which he may deem necessary for the purposes of this order and section 290 of the Local Government Act 1933 shall apply as if the joint board were a local authority.

Inquiries and expenses.

9. This order may be cited as the Bury and District Joint Hospital Order (No. 2) 1935 and the hospital orders the Bury and District Joint Hospital Order 1935 and this order may be cited together as the Bury and District Joint Hospital Orders 1903 to 1935.

Short and collective titles.

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SCHEDULE.

*Bury and
District
Order.*

1. Name of district.	2. Name of authority.	3. Ex-officio members.		4. Elec- tive mem- bers.
		No.	Description.	No.
The borough of Bury.	The council of the borough of Bury.	1	The mayor or in the event of his being unable or unwilling to act the deputy mayor.	6
The borough of Radcliffe.	The council of the borough of Radcliffe.	—	—	3
The urban district of Prestwich.	The urban district council of Prestwich.	—	—	3
The urban district of Ramsbottom.	The urban district council of Ramsbottom.	—	—	2
The urban district of Tottington.	The urban district council of Tottington.	—	—	1
The urban district of Whitefield.	The urban district council of Whitefield.	—	—	1
Total - -		1	Total - -	16

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Acts of Parliament

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